

25CV04436 The People of the State of CA vs \$36,611 US Currency and Michael Riegard

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-07

Motion: Motion: Entry of Judgment

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Tentative Ruling: The People of the State of CA vs \$36,611 US Currency and Michael Riegard

Case Number

25CV04436

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/07/2026 - 10:00

Nature of Proceedings

Motion: Entry of Judgment

Tentative Ruling

For all reasons stated herein, the People's motion for default judgment is continued to October 9, 2026, at 10:00 a.m. in this department. On or before September 25, 2026, the People may file a supplemental declaration, request for judicial notice, or other supporting evidence establishing the elements of notice required by Health and Safety Code section 11488.4, subdivisions (e) and (f). If a supplemental declaration or other supporting information is not submitted by this time, the court will order this matter off-calendar.

Background:

On July 14, 2025, the People of the State of California (the People) initiated this action by filing a petition (Petition) for forfeiture against Michael Reigard (Reigard) and U.S. currency in the amount of \$35,611 (Property). The Petition asserts one cause of action for forfeiture pursuant to Health and Safety Code section 11488.4.

As alleged in the Petition:

On or before June 11 and June 25, 2025, the Property became subject to forfeiture pursuant to Health and Safety Code section 11470. The Property was used as an instrument to facilitate the manufacture or distribution of controlled substances. On June 11, 2025, officers seized \$32,336 in cash from Reigard following his arrest on controlled substance possession for sales charges, on the Mission Street on-ramp in Santa Barbara. On June 25, 2025, and pursuant to a search warrant, \$2,275 was seized from a storage unit at 20 S. Calle Cesar Chavez Street controlled by Reigard. The Property is currently located at, or is under the control of, the Santa Barbara Police Department. The Petition seeks judgment declaring the Property forfeited to the State of California and for disposition pursuant to Health and Safety Code sections 11489, 11473.2, or 11473.3.

On December 10, 2025, the People filed this motion for default judgment. The original motion is supported by a declaration of Adam C. Howland. Howland declares that on July 29, in Santa Barbara County Case No. 25CR04529, Reigard plead guilty to felony transportation for sale of fentanyl and methamphetamine in violation of Health and Safety Code sections 11352 and 11379. (Howard Decl., ¶¶ 4-9.) Reigard also signed a stipulation forfeiting his interest in the Property. (Howland Decl., ¶¶ 9-10, Ex. C.) There is no opposition to this motion or response to the Petition.

Analysis:

(1) Legal Standard

"[I]f the Department of Justice or the local governmental entity determines that the factual circumstances do warrant that the moneys, negotiable instruments, securities, or other things of value seized or subject to forfeiture come within the provisions of subdivisions (a) to (g), inclusive, of Section 11470, and are not automatically made forfeitable or subject to court order of forfeiture or destruction by another provision of this chapter, the Attorney General or district attorney shall file a petition of forfeiture with the superior court of the county in which the defendant has been charged with the underlying criminal offense or in which the property subject to forfeiture has been seized or, if no seizure has occurred, in the county in which the property subject to forfeiture is located...." (Health & Saf. Code, § 11488.4, subd. (a)(1).)

"The Attorney General or district attorney shall make service of process regarding this petition upon every individual designated in a receipt issued for the property seized. In addition, the Attorney General or district attorney shall cause a notice of the seizure, if any, and of the intended forfeiture proceeding, as well as a notice stating that any interested party may file a verified claim with the superior court of the county in which the property was seized or if the property was not seized, a notice of the initiation of forfeiture proceedings with respect to any interest in the property seized or subject to forfeiture, to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized. Whenever a notice is delivered pursuant to this section, it shall be accompanied by a claim form as described in Section 11488.5 and directions for the filing and service of a claim." (Health & Saf. Code, § 11488.4, subd., (c).)

"When a forfeiture action is filed, the notices shall be published once a week for three successive weeks in a newspaper of general circulation in the county where the seizure was made or where the property subject to forfeiture is located." (Health & Saf. Code, § 11488.4, subd. (e).)

"All notices shall set forth the time within which a claim of interest in the property seized or subject to forfeiture is required to be filed pursuant to Section 11488.5. The notices shall explain, in plain language, what an interested party must do and the time in which the person must act to contest the forfeiture in a hearing. The notices shall state what rights the interested party has at a hearing. The notices shall also state the legal consequences for failing to respond to the forfeiture notice." (Health & Saf. Code, § 11488.4, subd. (f).)

"Any person claiming an interest in the property seized pursuant to Section 11488 may, unless for good cause shown the court extends the time for filing, at any time within 30 days from the date of the last publication of the notice of seizure, if that person was not personally served or served by mail, or within 30 days after receipt of actual notice, file with the superior court of the county in which the defendant has been charged with the underlying or related criminal offense or in which the property was seized or, if there was no seizure, in which the property is located, a claim, verified in accordance with Section 446 of the Code of Civil Procedure, stating the claimant's interest in the property. An endorsed copy of the claim shall be served by the claimant on the Attorney General or district attorney, as appropriate, within 30 days of the filing of the claim. The Judicial Council shall develop and approve official forms for the verified claim that is to be filed pursuant to this section. The official forms shall be drafted in nontechnical language, in English and in Spanish, and shall be made available through the office of the clerk of the appropriate court. A claim under this section is an unlimited civil case, regardless of the value of the seized property." (Health & Saf. Code, § 11488.5, subd. (a)(1).)

"If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense." (Health & Saf. Code, § 11488.5, subd. (b)(1).)

Pursuant to Civil Code section 11470, "[a]ll moneys, negotiable instruments, securities, or other things of value furnished or intended to be furnished by any person in exchange for a controlled substance, [and] all proceeds traceable to such an exchange" are subject to forfeiture. (Health & Saf. Code, § 11470, subd. (f).)

(2) Original Motion

The People's petition was filed on July 14, 2025. The People's original motion for default judgment was filed on December 10, 2025. Here, the People have established that the Property is traceable to the sale of controlled substances in violation of the Health and Safety Code and that Reigard executed a stipulation forfeiting his interest in the Property. (Howland Decl., ¶¶ 4-13, Exs. A-D.) Further, it is apparent that no other claimants have filed claims in this matter or any response to the Petition.

However, the evidence provided in the original motion as to public notice of seizure is insufficient. Howland testifies that "[n]otice of seizure was also published in an appropriate newspaper for the statutorily required three consecutive weeks." (Howland Decl., ¶ 8.) This is insufficient to establish a prima facie case that: "All notices shall set forth the time within which a claim of interest in the property seized or subject to forfeiture is required to be filed pursuant to Section 11488.5. The notices shall explain, in plain language, what an interested party must do and the time in which the person must act to contest the forfeiture in a hearing. The notices shall state what rights the interested party has at a hearing. The notices shall also state the legal consequences for failing to respond to the forfeiture notice." (Health & Saf. Code, § 11488.4, subd. (f).) "When a forfeiture action is filed, the notices shall be published once a week for three successive weeks in a newspaper of general circulation in the county where the seizure was made or where the property subject to forfeiture is located." (Id., subd. (e).)

"A forfeiture proceeding is a civil in rem action in which property is considered the defendant, on the fiction that the property is the guilty party. [Citations.] Statutes imposing forfeitures are disfavored and are to be strictly construed in favor of the persons against whom they are sought to be imposed." (Cuevas v. Superior Court (2013) 221 Cal.App.4th 1312, 1320, internal quotation marks omitted.) "This disfavor applies 'notwithstanding the strong governmental interest in stemming illegal drug transactions.'" (Id. at p. 1322; see also People v. International Fidelity Ins. Co. (2012) 212 Cal.App.4th 1556, 1561 (in the context of bail statutes, forfeiture procedures "must be precisely followed or the court loses jurisdiction and its actions are void."))

(3) Supplemental Declaration

On June 12, 2026, the court issued an order continuing this motion so that the People could file a supplemental declaration addressing the issue of public notice, establishing the elements of notice required by Health and Safety Code section 11488.4, subdivisions (e) and (f). The court has reviewed the supplemental declaration by Adam C. Howland filed on June

16, 2026. The declaration states in part that, attorney Howland is "informed and believe, based upon an email from Debra Giles, Pacific Coast Business Times Office Manager and Director of Circulation, that this Notice of Forfeiture was published on the following dates: August 8, 2025; August 15, 2025; and August 22, 2025." (Supp. Howland Decl., ¶ 6, Ex. A.)

(4) Proof of Publication

The court will require proof of publication of the Notice of Forfeiture by declaration based on an adequate foundation and personal knowledge. (Evid. Code, § 403, subd. (a).) "Proof of publication may [also] be made by the affidavit of the publisher or printer, or the foreman or principal clerk of the publisher or printer, showing the time and place of publication." (Code Civ. Proc., § 684.220.) Alternatively, the People may file a request for judicial notice attaching a copy of the Notice of Forfeiture as published on August 8, August 15, and August 22, 2025, from a public source not subject to reasonable dispute under Evidence Code section 452. (See Evid. Code, § 452, subd. (h).)

Judges

Judge Donna D. Geck

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